



U.S. Department
of Transportation

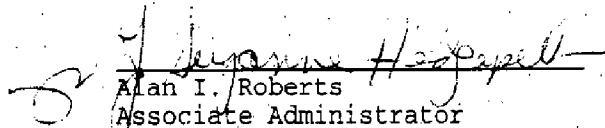
Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 9970 (EXTENSION)
FIRST REVISION October 9, 1991

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 9970 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to September 30, 1996. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

JUL 31 1994

(DATE)

Dist: FHWA

EXEMPTION HOLDER

APPLICATION DATE

E.I. du Pont de Nemours & Company, Inc.
Wilmington, DE

July 21, 1994

Alliant Techsystems, Inc.
New Brighton, MN

June 19, 1995

ADVISORY

IF YOU ARE A HOLDER OF AN EXEMPTION THAT AUTHORIZES THE USE OF A PACKAGING WITH A MAXIMUM CAPACITY LESS THAN 450 L (119 GALLONS) OR A MAXIMUM NET MASS LESS THAN 400 KG (882 POUNDS), PLEASE BE ADVISED THAT YOUR EXEMPTION MAY NOT BE RENEWED BEYOND SEPTEMBER 30, 1996. IN ADDITION, NO NEW CONSTRUCTION OF PACKAGINGS WHICH FALL WITHIN THE NON-BULK CAPACITIES LISTED ABOVE ARE AUTHORIZED AFTER SEPTEMBER 30, 1994. THIS IS CONSISTENT WITH THE IMPLEMENTATION OF THE NEW PACKAGING REQUIREMENTS ADOPTED UNDER DOCKET HM-181. ANY APPLICATION SUBMITTED TO THIS OFFICE TO RENEW AN EXEMPTION BEYOND THE SEPTEMBER 30, 1996 DATE WILL BE DENIED UNLESS THE APPLICATION CONTAINS SUPPORTING INFORMATION TO JUSTIFY THE CONTINUATION OF THE EXEMPTION.

Expired - No Renewal
NOT Active



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OCT 9 1991

DOT-E 9970
(FIRST REVISION)

1. Hercules, Incorporated, Wilmington, Delaware, is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to offer packages prescribed herein of a high explosive for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the shipment of RDX wet with ethyl acetate or ethyl alcohol and of RDX wet with a mixture consisting of ethyl acetate and ethyl alcohol in polyethylene bags overpacked in fiber drums, and provides no relief from any regulation other than as specifically stated. Each of the following is hereby granted the status of a party to this exemption.

E.I. du Pont de Nemours and Company, Inc., Wilmington, DE

PTE - 1.

Thiokol Corporation, Elkton, MD - PTE - 2.

2. BASIS. This exemption is based on an application from Hercules, Incorporated dated November 27, 1990, submitted in accordance with 49 CFR 107.105 and supplemental letter dated March 27, 1991.

E.I. du Pont de Nemours and Company, Inc.'s application
dated December 18, 1990.

Thiokol Corporation, application dated April 23, 1991.

3. HAZARDOUS MATERIALS (Descriptor and class). RDX (5 micron) wet with 20% ethyl acetate; RDX (5 micron) wetted with 20% ethyl alcohol (95% concentration), or RDX (5 micron) wetted with 20% mixture of ethyl acetate and ethyl alcohol, classed as Class A explosive.

4. PROPER SHIPPING NAME (49 CFR 172.101). High explosive [RDX wetted with solvent].

5. REGULATION AFFECTED. 49 CFR 172.101, 172.300, 173.65(e).

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle.

7. SAFETY CONTROL MEASURES. Packaging prescribed is a unit consisting of two (inner and outer) 10 mil velostat polyethylene bags conforming to the requirements of MIL-P-82646A. Inner bag is filled with 40 pounds of RDX and 10 pounds of ethyl acetate or ethyl alcohol, or 40 pounds of RDX and 10 pounds of a mixture of ethyl acetate and ethyl alcohol.

Inner bag is taped closed and placed within an outer bag which is taped closed. Not more than two units may be placed in a DOT Specification 21C115 fiberboard drum. Net wetted explosive weight may not exceed 100 pounds per drum.

8. SPECIAL PROVISIONS.

a. Persons who receive packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with, and a current copy of this exemption is maintained at each facility from which such reoffering occurs.

b. A copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.

c. Drivers must have been instructed as to necessary safeguards and proper procedure in the event of unusual delay, fire, or accident.

d. Packages shipped under this exemption must be plainly marked on a contrasting background "DO NOT LOAD WITH OTHER HIGH EXPLOSIVES" in addition to any other marking required by 49 CFR.

9. REPORTING REQUIREMENTS. Any incident involving a fire, explosion or loss of packaging contents or packaging failure must be reported to the Associate Administrator for Hazardous Materials Safety as soon as practicable.

10. EXPIRATION DATE. November 30, 1992.

Issued at Washington, D.C.:


Alan I. Roberts
Associate Administrator for
Hazardous Materials Safety

OCT 9 1991

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590.
Attention: Exemptions Branch.

Dist: FHWA.